

25STCV19778 25STCV19778

County: los-angeles

Division: Civil Law and Motion

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TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

July 15, 2026

CASE NUMBER

25STCV19778

MOTIONS

Motion to Compel Deposition

MOVING PARTY

Defendant General

Motors LLC

OPPOSING PARTY

Plaintiff Yadira Guizar

MOTION

Defendant General

Motors LLC ("Defendant") moves to compel Plaintiff Yadira Guizar ("Plaintiff") to appear for deposition pursuant to Code of Civil Procedure section 871.26. Plaintiff opposes the motion.

Code of Civil

Procedure section 871.26, subdivision (c) provides, within 120 days after the filing of the answer or other responsive pleading in an action under the Song-Beverly Consumer Warranty Act, the defendant has the right to conduct an initial deposition, each not to exceed 2 hours, of the plaintiff. A party failing to comply with this requirement is subject to sanctions unless the party shows good cause for such failure. (Code Civ. Proc., § 871.26, subd. (j).)

Defendant filed its

demurrer to Plaintiff's complaint on October 9, 2025. As such, Plaintiff had until February 6, 2026 to appear for Plaintiff's initial deposition. Plaintiff failed to do so.

In opposition,

Plaintiff argues she was willing to appear for the deposition. Defendant served Plaintiff with a notice of deposition for December 19, 2025.

Plaintiff objected to the deposition notice on the basis Plaintiff was unavailable on that date. A party may object to a deposition notice based on any "error or irregularity" in the deposition notice. (Code Civ. Proc., § 2025.410, subds. (a), (b).) In the instant case, however, Plaintiff did not object to errors in the deposition notice. Rather, Plaintiff objected, asserting she was unavailable on the date Defendant selected.

As such, Plaintiff

was required to seek a protective order directing "[t]hat the deposition be taken at a different time." (Code Civ. Proc., § 2025.420, subd. (b)(2).)

Plaintiff did not do so. Further,

Defendant attempted to reschedule the deposition to accommodate Plaintiff, and Plaintiff ignored those efforts.

(Declaration of Sanja Start, ¶¶ 6-8, Exhibit D.) Thus, Plaintiff failed to comply with the requirements of Code of Civil Procedure section 871.26.

Accordingly, the Court imposes sanctions in the amount of \$1,500 against Plaintiff's counsel of record, Strategic Legal Practices, APC, as required by Code of Civil Procedure section 871.26. (See Code Civ. Proc., § 871.26, subd. (j)(2).) Plaintiff's counsel of record, Strategic Legal Practices, APC, is to pay sanctions in that amount to Defendant within 15 business days.

Code of Civil

Procedure section 871.26 does not provide authority for the Court to compel Plaintiff to appear for Plaintiff's initial deposition. The Court cannot grant Defendant's motion based on authority other than that which Defendant cites in its notice of motion. (See Code Civ. Proc., § 1010 ["Notices must be in writing, and the notice of a motion, other than for a new trial, must state when, and the grounds upon which it will be made, and the papers, if any, upon which it is to be based"]; Cal. Rules of Court, rule 3.1110(a) ["A notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order"]; *People v. American Surety Insurance Co.* (1999) 75 Cal.App.4th 719, 726 [court concluded notice of motion made no reference to the fact of what the movant sought or the grounds for such relief, as required by rule 311(a) of the California Rules of Court, the predecessor to Rules of Court, rule 3.1110(a)].)

Consequently, the

Court denies Defendant's motion to the extent Defendant seeks to compel Plaintiff to appear for the initial deposition. Defendant's remedy is sanctions, which the Court has imposed, as noted above. Should Plaintiff fail to comply with her obligation to appear for the initial deposition after notice of this order, Defendant would be entitled to dismissal of Plaintiff's complaint and an award of costs. (Code Civ. Proc., § 871.26, subd. (j)(3).)

Defendant is to

provide notice of the Court's ruling and to file proof of service of same.